

24STCV17530 24STCV17530

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-09-24
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Case Number: 24STCV17530 Hearing Date: September 24, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JUAN CARLOS NUNO OGAZ,

Plaintiff,

vs.

FCA US LLC,

Defendant.

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CASE NO.: 24STCV17530

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
DISCOVERY RESPONSES

Dept. 506

8:30 a.m.

September 24, 2026

Plaintiff

served Requests for Production (Two) on Defendant, and Defendant did not serve responses.

On

August 24, 2026, Plaintiff filed a motion to compel responses.

Where

a party fails to serve timely responses to discovery requests, the court may make
an order compelling responses. (Code Civ.

Proc., §§ 2030.290 [interrogatories], 2031.300 [documents]; Healthcare Consulting, Inc. v. Pacific Healthcare
Consultants (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses
waives any objections to the request, including ones based on privilege or the protection
of attorney work product. (Code Civ. Proc.,
§§ 2030.290, subd. (a) [interrogatories], 2031.300, subd. (a) [documents].)

Defendant

contends that the motion is moot because it served late responses on September 3,
2026. However, Defendant's responses consist
of objections, which have been waived. The

Court will not grant Defendant affirmative relief from waiver or from alleged overbreadth based solely on arguments raised in opposition.

(See Opposition at pp. 5-9.) If Defendant believes it has meritorious arguments on those points, Defendant must file the appropriate motions.

Accordingly,
the motion is GRANTED.

Defendant
is ordered to provide verified responses, without objections, to Requests for Production (Set Two) within 30 days.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 24th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court